

Crime Victim Compensation - Frequently Asked Questions

What Benefits Are Available?

- Maximum award up to \$15,000 available during the claim period.
- Crime related expenses can be considered up to 2 years from the crime date.
- Mental health counseling expenses can be considered up to 3 years from the crime date.

What Types of Expenses Can Be Compensated?

Losses directly related to the compensable crime are eligible for reimbursement/payment directly to the provider during the 2 year period of time a claim is open and include:

- Medical/dental expenses
- Mental health expenses (\$85 per hour, associated victim max \$4,500, 3 years for mental health)
- Lost wages (Federal Minimum Wage)
- Loss of support (Federal Minimum Wage)
- Funeral expenses (max \$7000)
- Crime scene clean-up (max \$2500)
- Items taken as evidence (max \$500)
- Certain out of pocket expenses (prescriptions)
- Eye glasses replacement (max \$300)
- Mileage (to and from doctor's appointment, etc.)

Catastrophic award up to an additional \$10,000.00

- Catastrophic award may be made only for eligible losses and expenses occurring within twenty-four (24) months after the date of the injury.
- Special renovations to home or car to accommodate disability resulting from the victimization
- Lost Wages (after paid leave is exhausted)
- Special home health care, adaptive or medical equipment required as a result of the victimization
 - Prosthesis
 - Wheel chairs or other adaptive devices
 - Assisted technology items
- Cost associated with a Life Flight

Who Can File A Claim?

- A victim of a crime who has suffered injury as a result of:
 - a criminal act
 - trying to stop a person committing a crime
 - trying to help a law enforcement officer
 - trying to help a victim of a crime
- Families and dependents of deceased victims
- Persons who are authorized to act on behalf of victims

What Are The Eligibility Requirements?

- The crime must have occurred in Wyoming on or after May 23, 1985
- The claim must be filed within one (1) year of the date of the crime
- The victim or claimant must report the crime to law enforcement within a reasonable time after the crime
- The victim must have sustained an actual physical or mental harm as the result of a criminal act of another
- The victim or claimant must fully cooperate in the investigation and prosecution of the crime
- Federal crime victims are eligible to apply for compensation whether or not the crime falls under tribal, state, or federal jurisdiction
- No portion of the compensation shall benefit the offender in any way
- A victim whose own misconduct either caused or contributed to the criminal act could be reduced or denied compensation

Who Is NOT Eligible?

- The offender and/or accomplice
- A victim under indictment or convicted of a felony after applying for compensation
- An individual who is a victim of a criminal attack while confined in a prison or other correctional facility at the time of the crime
- A victim whose expenses are paid entirely by other sources
- Victims of monetary or property loss
- Victims seeking compensation only for pain and suffering

What If There Is Insurance Or Another Source to Cover Part of the Losses?

Compensation is a secondary source which pays for losses that are not covered by a collateral source (aka: the payer of last resort). Insurance benefits or any other collateral source must be used first. If the collateral source does not pay the entire amount, then you may be eligible to be compensated for what was not covered. The following are considered “collateral sources” that must pay before compensation will reimburse a claimant:

- Health Insurance
- Automobile Insurance
- Sick or Vacation Leave
- Paid Time Off
- Disability Insurance
- Worker's Compensation
- Social Security

Does There Have To Be An Arrest Or Conviction Before Compensation Will Be Paid

- The only requirement to be eligible to receive compensation is that the crime **MUST** be reported to law enforcement. No arrest, prosecution, nor conviction is necessary to be eligible.

What If Restitution Is Recovered From The Offender?

- In the event that the court orders the offender to make restitution, that portion of the restitution covering expenses paid by the Division of Victim Services must be reimbursed back to the compensation fund. If you recover money through a civil suit against the

offender, you will be required to pay the Division of Victim Services for expenses that were paid on your behalf.

How Is The Claim Processed?

- Upon receipt of the application, an investigation is conducted to verify all the information. Law enforcement, service providers, employers, etc. are contacted to substantiate the compensation application.
- The Division staff reviews the claim and decides if it qualifies for compensation and determines the amount(s) and category(s) the victim may be eligible for.
- The Division will notify you of the amount of the award eligible for reimbursement. If the claim is denied or payment reduced, the reason will be provided in writing.
- If the claim is reduced or denied, the victim has the right to request an appeal within 30 days upon receipt of the reduction or denial.

How Do I Apply?

You must file an application within 1 year of the date of the crime.

Applications are available on this website. The Division of Victim Services strongly recommends working with a local service provider to apply for compensation. Applications are also available in your community at the following locations:

- law enforcement agencies
- domestic violence/ sexual assault agencies
- prosecuting attorney's offices
- victim assistance agencies

For More Information:

Mailing Address:

320 W. 25th Street
Capitol Hill Building- 2nd Floor
Cheyenne, WY 82002

Phone: (307) 777-7200

Toll Free: (888) 996-8816

e-mail: ag-victimservices@wyo.gov